SHIFT

Agreement # P3UCWD8E

Vehicle Protection Plan
For New & Pre-Owned Vehicles
INFORMATION SCHEDULE

VEHICLE

Year, Make, Model, VIN 2018 INFINITI QX30 PURE/ESSEN SJKCH5CR4JA002887 Vehicle Code

CUSTOMER

Buyer Juan Jazo Co-Buyer Nicole Birkner

Address, City, State, Zip 355 1st St S510 San Francisco CA 94105

Phone Cell Home (805) 602-6603 Email

SELLING STORE

Store Name, Store Number Shift CA000095

Address, City, State, Zip 12910 Mulberry Drive Whittier CA 90602

Phone (855) 744-6965 Store Representative

LIENHOLDER/LESSOR

Lienholder/Lessor Ally Financial Inc

Address, City, State, Zip, Phone PO Box 9001951 Louisville KY 40290-1951

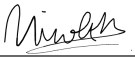
VEHICLE PROTECTION PLAN INFORMATION

Coverage Plan	Platinum	Purchase Date	03/25/2022
Term Months	60	*Expiration Date*	03/25/2027
Term Miles	60,000	Current Mileage	19,803
Deductible	100.00	*Expiration Mileage*	79,803
Agreement Price	3,086.00		

Notice to Customer:

- **The purchase of this Vehicle Protection Plan is not required to obtain financing or to purchase or lease this Vehicle. The Agreement Price may be financed with the purchase of this Vehicle. Other payment options may be available.**
- **You must follow the maintenance guidelines listed in Section VII. Your Responsibilities. If Your failure to follow the maintenance guidelines causes a Breakdown, You may be denied coverage.**
- **You are required to obtain authorization prior to beginning any repairs covered by this Vehicle Protection Plan. Refer to Section VII. Your Responsibilities for instructions.**
- **This Vehicle Protection Plan runs concurrent with, and is secondary to, any applicable manufacturer's Warranty.**
- **If the manufacturer's Warranty is void at the Purchase Date or becomes void during the Agreement Term, We will not automatically suspend all coverage for any length of time. We will not provide any coverage that would have otherwise been provided under the manufacturer's Warranty, until the full term of the manufacturer's Warranty elapses. However, We will continue to provide any other coverage under this Vehicle Protection Plan, unless such coverage is otherwise excluded by the terms of this Vehicle Protection Plan.**
- **The benefits provided under automotive retailer Warranties required by state law are not covered by this Vehicle Protection Plan.**

I (Customer), whose signature appears below, acknowledge that the information contained above is true and accurate. I have read the terms and conditions, understand and agree to all of the provisions herein.



Buyer Signature



Co-Buyer Signature

Provider and Administrator

- **In CA:** Motor Warranty Services of North America, California License, #0E40891
- **In FL, LA & OK:** Automotive Warranty Services of Florida, Inc., Florida License #60023, Oklahoma License #44198051
- **All Other States:** Consumer Program Administrators, Inc., Texas License #175

All located at 175 West Jackson Blvd., Chicago, Illinois 60604, 1-800-533-8136

For Emergency Roadside Assistance:
Toll-free 1-800-270-8447

To File a Claim:
Visit us at www.mrclaims.net

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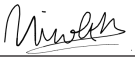
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SHIFT VEHICLE PROTECTION PLAN AGREEMENT

This agreement is a Vehicle Protection Plan Agreement between **You** and **Us**, and describes the coverage **You** will have under **Your** Shift Vehicle Protection Plan Agreement (hereafter referred to as "Agreement"). In return for payment by **You** of the Agreement Price and subject to all of the terms of this Agreement, **We** agree with **You** as follows:

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I. KEY TERMS

When used, Key Terms will appear in **bold** print and initial uppercase.

"Provider", **"We"**, **"Us"**, **"Our"** and **"Administrator"** mean Consumer Program Administrators, Inc., Texas License #175, except in the state of New Hampshire where **Provider**, **We**, **Us**, **Our** and **Administrator** mean Consumer Program Administrators, Inc. dba Consumer Warranty Program Administrators; in the state of Texas where **Provider**, **We**, **Us**, **Our** and **Administrator** mean Consumer Program Administrators, Inc. dba The Administrators of Consumer Programs; in the state of California where **Provider**, **We**, **Us**, **Our** and **Administrator** mean Motor Warranty Services of North America, California License #0E40891; in the states of Florida, Louisiana and Oklahoma where **Provider**, **We**, **Us**, **Our** and **Administrator** mean Automotive Warranty Services of Florida, Inc., Florida License #60023 and Oklahoma License #44198051, all located at 175 West Jackson Blvd., Chicago, IL 60604, 1-800-533-8136.

"Breakdown" means the failure of any original or like replacement part covered by this Agreement to perform its intended function(s) in normal service, providing it has received all scheduled maintenance, at the proper intervals, as recommended by the manufacturer in the Owners Manual. **Breakdown** does not include the gradual reduction in operating performance caused by wear and tear where a failure has not occurred.

"Cost" means the reasonable and customary charges for parts and labor necessary to repair or replace the parts covered. These charges shall not exceed the manufacturer's suggested retail price for parts and labor allowances derived from nationally recognized labor time publications.

At the Provider's option, the Administrator may use replacement parts in covered repairs that may include new, remanufactured, pre-owned or non-original equipment manufactured parts.

"Deductible" means the amount **You** must pay per visit for covered repairs shown on the Information Schedule.

"Permitted Commercial Purposes" means **Your Vehicle** is used for commercial purposes including but not limited to: vehicles used by a single driver for sales/services (e.g. real estate, cleaning services, home health/aide care services and gardening) or light duty contracting (e.g. electrician, carpenter and plumber).

"Prohibited Commercial Purposes" means **Your Vehicle** is used for commercial purposes including but not limited to: hauling, construction work, principal off-road use, pickup and/or delivery service, daily rentals, carry passengers for hire (taxi, limousine or shuttle services), towing or road service operations, government/military use, law enforcement, fire, ambulance or other emergency services, snowplowing, company pool use or business travel when the **Vehicle** is used by more than one driver.

"Purchase Date" means the date **You** purchased this Agreement shown on the Information Schedule.

"Repair Facility" means an automobile dealership or licensed repair facility that provides a written parts and labor guarantee for covered repairs of not less than 12 months and 12,000 miles. Repairs performed by any facility must receive authorization from the **Administrator** prior to beginning repairs.

"Road Hazard" means objects and road conditions such as potholes, rocks, wood debris, metal parts, nails, glass, plastic or composite scraps or any item causing tire damage other than wear and tear and those conditions excluded under **Section V. "Agreement Limitations"**.

"Selling Store" means the store from whom **You** purchased this Agreement shown on the Information Schedule.

"Agreement Price" means the amount **You** paid for this Agreement shown on the Information Schedule.

"Term Miles" means the number of miles for the Agreement Term shown on the Information Schedule.

"Term Months" means the number of months for the Agreement Term shown on the Information Schedule.

"Vehicle" means the vehicle shown on the Information Schedule.

"Warranty" means any warranty of the manufacturer, state required warranty, automotive retailer warranty or a **Repair Facility** guarantee.

"You" and **"Your"** mean the Customer shown on the Information Schedule or an eligible person to whom this Agreement has been properly transferred.

II. WHAT THIS AGREEMENT COVERS

During the Agreement Term, subject to the indicated Coverage Plan, **We** will pay a **Repair Facility,** or at **Our** option, reimburse **You** the **Cost** to remedy any covered **Breakdown** of the following parts less **Your Deductible**.

At the Provider's option, the Administrator may use replacement parts in covered repairs that may include new, remanufactured, pre-owned or non-original equipment manufacturer parts.

POWERTRAIN

POWERTRAIN COVERAGE

When the POWERTRAIN Coverage Plan has been purchased as indicated on the Information Schedule, only the following parts are covered. Parts not listed are not covered.

Assembly Parts Covered

1. ENGINE Gasoline Engine – Cylinder block and all internal lubricated parts including: crankshaft, rod and main bearings, cam bearings, expansion (freeze) plugs, connecting rods, wrist pins, pistons, piston rings, camshaft, cam tower, lifters, cylinder head, valves and guides, valve springs, rocker arms (cam followers), pushrods, timing chain housing (cover), timing chain and sprockets, timing belt and pulleys, timing belt tensioner, intake and exhaust manifolds, flywheel, balance shafts, harmonic balancer and retainer bolt, crankshaft pulley, valve covers, oil pan, oil pump and pressure relief valve, engine oil cooler hoses, oil filter adapter/housing, engine oil sending unit, engine mounts, water pump, temperature sending unit, thermostat and housing, fuel supply pump, vacuum pump, dipstick and tube, fasteners for the components listed above.

Turbocharged/Supercharged/Rotary/Diesel/Enhanced Engines – All of the above listed parts or equivalent plus: turbocharger, waste gate controller, intercooler, hard lines, compressor, clutch and pulley, bypass valve, injection pump, lines and nozzles.

2. TRANSMISSION Automatic – Case and all internal lubricated parts including: oil pump, valve body, torque converter, vacuum modulator, governor, main shaft, clutches, bands, drums, gear sets, bearings, bushings, sealing rings, TV cable, solenoids, electronic shift control unit, transmission mounts, cooler, cooler hoses and hard lines, dipstick and tube, fasteners for the components listed above.

Standard – Case and all internal lubricated parts including: main shaft, gear sets, shift forks, synchronizers, bearings, bushings, fasteners for the components listed above.

Transfer Case – (4X4 vehicles) – Case and all internal lubricated parts including: main shaft, gear sets, chain and sprockets, bearings, bushings, mounts, fasteners for the components listed above, electronic and vacuum engagement components.

3. FRONT WHEEL DRIVE Final drive housing and all internal parts including: carrier case, gear sets, chain and sprockets, bearings, bushings, axle shafts, universal joints, front hub bearings, rear hub bearings, locking hub assemblies (4X4), drive shaft support, fasteners for the components listed above.

4. REAR WHEEL DRIVE Drive axle housing and all internal lubricated parts including: carrier case, gear sets, bearings, bushings, limited slip clutch pack, axle shafts, front hub bearings, rear hub bearings, propeller shafts, universal joints, drive shaft support, fasteners for the components listed above.

5. BASIC HYBRID/ELECTRIC VEHICLE COMPONENTS Electric motor/generator(s) and all internal components, inverter/converter/transformer units and all internal components, inverter/converter/transformer units cover, continuously variable transmission (CVT) and all internal components, power split device and all internal components, reduction/reducer box and all internal components, and fasteners for the components listed above.

6. SEALS AND GASKETS All seals and gaskets on the assemblies listed above are covered if **Your Vehicle** has 90,000 miles or less at the **Purchase Date**. If **Your Vehicle** has more than 90,000 miles at the **Purchase Date**, seals and gaskets are covered when replaced in conjunction with a covered repair.

SILVER

SILVER COVERAGE

When the SILVER Coverage Plan has been purchased as indicated on the Information Schedule, only the following parts, in addition to the parts listed under the Powertrain Coverage, are covered. Parts not listed are not covered.

7. STEERING Housing/case and all internal lubricated parts including: rack and pinion equipped valve assembly, sector shaft, rack mounts and cushions, inner rod ends and bellows boots, speed sensor or steering gear equipped pitman shaft and valve assembly, sealing rings, bearings, bushings, pitman arm, center link, tie rods, idler arm, power steering pump and pulley, electric power steering motor, fluid reservoir, pressure and return hoses, cooler and hard lines, power cylinder assembly, steering main and intermediate shafts, coupling, fasteners for the components listed above. (Does not include "rear wheel steering" components.)

8. FRONT SUSPENSION Upper and lower control arms, bump stop cushions, control arm shafts, torsion bar mounts and bushings, upper and lower ball joints including dust boots, steering knuckle (spindle), wheel bearings and seals, stabilizer shaft, stabilizer linkage including mounts and bushings, strut rods and bushings, king pins, fasteners for the components listed above.

9. BRAKES Master cylinder, assist booster, wheel cylinders, combination valve, disc brake calipers (and rear caliper actuators), hard lines and fittings, backing plates, springs, clips and retainers, self-adjusters, parking brake linkage and cables, fasteners for the components listed above.

10. ELECTRICAL Alternator, voltage regulator, front and rear windshield wiper motors and delay controller, starter motor and drive, starter solenoid, wiring harnesses, manually operated switches (specifically turn signal, headlight, dimmer, and wiper switches), mechanically actuated switches (ignition, brake light and neutral safety switch), electronic fuel injection system (including all input/sensors & output/control units, except EGR valve, related to the fuel injection system), electronic ignition module, distributor and coil, engine management control unit, knock sensor and oxygen sensor.

11. AIR CONDITIONING Compressor and mounting brackets, clutch and pulley, condenser, evaporator, orifice tube, accumulator, temperature control programmer, high/low pressure cutoff switches, high/low pressure hoses, pressure cycling switch, thermostat, drier, temperature control head, fasteners for the components listed above and freon-refrigerant if necessary in conjunction with the repair of the components listed above.

12. ADDITIONAL HYBRID/ELECTRIC VEHICLE COMPONENTS Hybrid battery junction block, hybrid battery main battery cable, and electric alternating current compressor.

13. SEALS AND GASKETS All seals and gaskets on the assemblies listed above.

GOLD

GOLD COVERAGE

When the GOLD Coverage Plan has been purchased as indicated on the Information Schedule, only the following parts, in addition to the parts listed under Powertrain and Silver Coverage, are covered. Parts not listed are not covered.

14. ADVANCED COMPONENTS Anti-lock brake system, power seat motor(s) and transmission(s), power window motor(s) and power regulator(s), power door lock actuator(s), digital and analog instrument display(s), low fuel sensor, low coolant sensor, low oil sensor, electronic rear view mirror motor(s), headlight door motor(s), heated back glass, windshield wiper washer pump(s), heater-A/C blower motor, heater core assembly, heater control valve, radiator, radiator fan and clutch, radiator fan motor including fan blade, temperature sensor and relay, fuel tank and hard lines, fuel tank sending unit, power sun roof motor, convertible top motor, constant velocity joints and horn assembly.

15. ADVANCED HYBRID/ELECTRIC VEHICLE COMPONENTS Onboard battery charging system, battery charge controller, motor/generator belt tensioner, drive motor dampener, voltage inverter reservoir, three-phase high voltage cables, hydraulic or electric regenerative braking system, onboard computer system including all relays, sensors, ECU & ECM (electronic control units/electronic control modules), power switch/button and controller/electronic throttle control system.

PLATINUM

PLATINUM COVERAGE

When the PLATINUM Coverage Plan has been purchased as indicated on the Information Schedule, **We** will remedy any **Breakdown** of **Your Vehicle** except items listed under the Sections **IV. Maintenance & Parts This Agreement Does Not Cover** and **V. Agreement Limitations.**

III. ADDITIONAL BENEFITS

The Additional Benefits shown below are included with the Coverage Plan purchased.

A. Rental Reimbursement

We will pay your actual expenses to rent a replacement vehicle from a licensed rental agency if **Your Vehicle** is held by a **Repair Facility** for a covered repair. Rental reimbursement shall not exceed $35 per day for a maximum of five days for any one **Breakdown.** If a covered repair cannot be completed within the first five days of a rental period due to a parts delay or other reasonable cause, the five day maximum is extended to ten days. Rental reimbursement is available beginning on the first day of the covered repair.

FOR RENTAL REIMBURSEMENT, CALL TOLL FREE: 1-800-533-8136

B. Emergency Roadside Assistance

Emergency Roadside Assistance is available 24 hours a day, 365 days a year. **We** will pay for a covered emergency up to $100 per occurrence with no out-of-pocket expense to **You**. If the covered emergency exceeds $100 per occurrence, **You** are responsible for the portion that exceeds $100. **You** are responsible for any non-covered expenses. This benefit is available only for **Your Vehicle**.

The following are covered emergencies under Emergency Roadside Assistance:

- **Towing Assistance** – when **Your Vehicle** is inoperable or unsafe to drive, **Your Vehicle** will be towed to the closest **Repair Facility** or to any other location requested by **You**.
- **Flat Tire Assistance** – service consists of the removal of the flat tire and its replacement with **Your** spare tire located with **Your Vehicle**.
- **Fuel, Oil, Fluid and Water Delivery Service** – an emergency supply of fuel, oil, fluid and water will be delivered if **Your Vehicle** is in immediate need. **You** will be responsible for the cost of these supplies.
- **Lock-out Assistance** – if **Your** keys are locked inside **Your Vehicle**, assistance will be provided in gaining entry into **Your Vehicle**.
- **Battery Assistance** – if battery failure occurs, a jump-start will be provided to start **Your Vehicle**.

FOR EMERGENCY ROADSIDE ASSISTANCE, CALL TOLL FREE: 1-800-270-8447

WE WILL NOT PAY FOR OR COVER THE FOLLOWING UNDER EMERGENCY ROADSIDE ASSISTANCE:

A. FOR EMERGENCIES RESULTING FROM THE USE OF INTOXICANTS OR NARCOTICS, OR THE USE OF YOUR VEHICLE IN THE COMMISSION OF A FELONY.

B. FOR COST OF PARTS, REPLACEMENT KEYS, FLUIDS, LUBRICANTS, FUEL, MATERIALS, ADDITIONAL LABOR RELATED TO TOWING OR COST OF INSTALLATION OF PRODUCTS.

C. FOR NON-EMERGENCY TOWING OR OTHER NON-EMERGENCY SERVICE.

D. FOR MOUNTING OR REMOVING OF SNOW TIRES OR CHAINS; WINCHING; EXTRICATION; TIRE REPAIR.

E. FOR SHOVELING SNOW AROUND YOUR VEHICLE.

F. FOR CAMPING TRAILERS, TRAVEL TRAILERS, RECREATIONAL VEHICLES (INCLUDING SELF-MOTORIZED RVS) OR ANY VEHICLES IN TOW.

G. FOR ANY AND ALL TAXES, TOLLS AND/OR FINES.

H. FOR TOWING FROM OR REPAIR WORK PERFORMED AT A SERVICE STATION, GARAGE OR REPAIR SHOP.

I. FOR TOWING BY OTHER THAN A LICENSED SERVICE STATION OR GARAGE.

J. FOR A SECOND TOW FOR THE SAME DISABLEMENT.

K. FOR MORE THAN ONE DISABLEMENT FOR THE SAME SERVICE TYPE DURING ANY SEVEN DAY PERIOD.

L. FOR SERVICE ON A VEHICLE THAT IS NOT IN A SAFE CONDITION TO BE TOWED OR SERVICED, OR THAT MAY RESULT IN DAMAGE TO YOUR VEHICLE IF TOWED OR SERVICED.

M. FOR TOWING OR SERVICE ON ROADS NOT REGULARLY MAINTAINED, SUCH AS SAND BEACHES, OPEN FIELDS, FORESTS AND AREAS DESIGNATED AS NOT PASSABLE DUE TO CONSTRUCTION.

N. FOR TOWING AT THE DIRECTION OF A LAW ENFORCEMENT OFFICER RELATING TO TRAFFIC OBSTRUCTION, IMPOUNDMENT, ABANDONMENT, ILLEGAL PARKING OR OTHER VIOLATIONS OF LAW.

O. FOR REPEATED SERVICE CALLS FOR A VEHICLE IN NEED OF ROUTINE MAINTENANCE OR REPAIR.

P. FOR SERVICE SECURED THROUGH ANY SOURCE OTHER THAN US WITHOUT OUR PRIOR AUTHORIZATION. THIS IS NOT A ROADSIDE ASSISTANCE REIMBURSEMENT SERVICE.

C. Emergency Travel Expense Reimbursement

Emergency Travel Expense Reimbursement is not available if You purchase this Agreement from a Selling Store located in the state of New York.

When a covered **Breakdown** renders **Your Vehicle** inoperable or unsafe to drive and requires **Your Vehicle** to be held overnight by a **Repair Facility** for covered repairs while traveling 100 miles or more from **Your** home, **We** will pay for emergency local commercial lodging, meals and transportation expenses up to $200 per day for a maximum of five days.

FOR EMERGENCY TRAVEL EXPENSE REIMBURSEMENT, CALL TOLL FREE: 1-800-270-8447

WE WILL NOT PAY FOR OR COVER THE FOLLOWING UNDER EMERGENCY TRAVEL EXPENSE REIMBURSEMENT:

A. FOR ADDITIONAL COMMERCIAL LODGING ENTERTAINMENT EXPENSES.

B. FOR ANY BREAKDOWN THAT OCCURS LESS THAN 100 MILES FROM YOUR HOME.

D. Road Hazard Tire Protection

We will pay a **Repair Facility**, or at **Our** option, reimburse **You** the **Cost** to repair, or if non-repairable, the **Cost** to replace a damaged tire on **Your Vehicle** if the damage is caused by a **Road Hazard** on a public roadway.

- Tire Repair – **We** will pay the **Cost** to repair the flat tire(s) not to exceed $20 per occurrence due to **Road Hazard** damage.
- Tire Replacement – **We** will pay for a replacement tire should the tire become non-repairable, as determined by the **Repair Facility**, due to **Road Hazard** damage. **We** will pay the **Cost** of a replacement tire (including mounting, balancing, new valve stem and sales tax) not to exceed $125 per tire as shown on the repair order.

Replacements are limited to the manufacturer's original tires or comparable or like replacements. Comparable or like replacements are determined by the Administrator.

FOR ROAD HAZARD TIRE PROTECTION, CALL TOLL FREE: 1-800-270-8447

WE WILL NOT PAY FOR OR COVER THE FOLLOWING UNDER ROAD HAZARD TIRE PROTECTION:

- **A. FOR A REPAIR OR REPLACEMENT EXCEEDING THE MANUFACTURER'S VEHICLE SPECIFICATION.**
- **B. FOR DAMAGE OCCURRING FROM OPERATING ON ANY SURFACE OTHER THAN FEDERAL, STATE, COUNTY, CITY OR MUNICIPALITY PAVED ROAD OR HIGHWAYS.**
- **C. FOR TIRES THAT HAVE 3/32" OR LESS TREAD DEPTH REMAINING.**
- **D. FOR TIRES AND/OR WHEELS THAT DO NOT MEET THE MANUFACTURER'S RECOMMENDATIONS SPECIFIC TO YOUR VEHICLE.**
- **E. FOR MISUSE OCCASIONED FROM DRIVING ON TIRES THAT ARE OVER INFLATED, UNDER INFLATED OR FLAT.**
- **F. FOR THE REPAIR OR REPLACEMENT OF THE TIRE PRESSURE MONITORING SYSTEM OR ASSOCIATED COMPONENTS.**
- **G. FOR TIRE ACCESSORIES, WHEEL ACCESSORIES, NITROGEN FILLING FOR TIRES, SHIPPING ASSOCIATED WITH DAMAGED OR REPLACEMENT TIRE OR WHEEL, ALIGNMENTS OR ADJUSTMENTS TO THE COVERED VEHICLE.**

E. Manufacturer's Deductible Reimbursement

We will reimburse **You** for the difference between the **Deductible** amount shown on the Information Schedule and any required manufacturer's deductible, if applicable, when a **Breakdown** of a covered part occurs and is covered by a manufacturer's **Warranty**.

FOR MANUFACTURER'S DEDUCTIBLE REIMBURSEMENT, CALL TOLL FREE: 1-800-533-8136

IV. MAINTENANCE & PARTS THIS AGREEMENT DOES NOT COVER

MAINTENANCE AND PARTS THAT ARE NOT COVERED

- **A. MAINTENANCE NOT COVERED – THE MAINTENANCE SERVICES AND PARTS DESCRIBED IN THE MANUFACTURER'S MAINTENANCE SCHEDULE FOR YOUR VEHICLE. OTHER NORMAL MAINTENANCE SERVICES AND PARTS INCLUDING ENGINE TUNE-UP, (INCLUDES SPARK PLUGS, GLOW PLUGS, IGNITION WIRES, DISTRIBUTOR CAP AND ROTOR), ALL BATTERIES (INCLUDING BUT NOT LIMITED TO: HYBRID/ELECTRIC VEHICLE BATTERIES), FILTERS, LUBRICANTS OR FLUIDS, AIR CONDITIONING REFRIGERANT, ENGINE COOLANT, ALL HOSES AND BELTS (NOT SPECIFICALLY LISTED), WIPER BLADES, BRAKE PADS AND SHOES, BRAKE ROTORS AND DRUMS, SUSPENSION ALIGNMENT.**
- **B. PARTS NOT COVERED – CONSTANT VELOCITY BOOTS, TIRES AND WHEEL BALANCING (UNLESS AS PROVIDED UNDER ROAD HAZARD TIRE PROTECTION), WHEEL COVERS, WHEEL RIMS, WHEELS, SHOCK ABSORBERS, SUSPENSION AIR BAGS, EXHAUST SYSTEM, CATALYTIC CONVERTER, FRICTION CLUTCH DISC AND PRESSURE PLATE AND CLUTCH RELEASE BEARING, GLASS, GLASS FRAMEWORK AND FASTENING ADHESIVES, SEALED BEAM HEAD LAMPS, LIGHT BULBS, LENSES, TRIM, MOLDINGS, BRIGHT METAL, UPHOLSTERY, PAINT, SHEET METAL, BUMPERS, ALIGNMENT OF BODY PARTS, FLEXIBLE BODY PARTS, DOOR PANELS, BODY PANELS, STRUCTURAL FRAMEWORK, CONVERTIBLE TOP FRAMEWORK, STRUCTURAL WELDS, HINGES, DOOR HANDLES, VINYL AND CONVERTIBLE TOPS AND NON-MECHANICAL REMOVABLE HARDTOP ASSEMBLIES.**

V. AGREEMENT LIMITATIONS

WE WILL NOT PAY FOR OR COVER THE FOLLOWING:

1. **MODIFICATIONS:**
   - **A. AFTERMARKET ACCESSORIES OR EQUIPMENT, COMPONENTS AND SYSTEMS, INCLUDING BUT NOT LIMITED TO: ANTI-THEFT SYSTEMS, RADAR DETECTORS, CB RADIOS, RADIO/SPEAKER EQUIPMENT, CRUISE CONTROL, SUNROOF, SOLAR POWERED DEVICES, TELEPHONES, TV/VCR/DVD AND RELATED COMPONENTS AND APPLIANCES (UNLESS INSTALLED BY THE MANUFACTURER).**
   - **B. IF YOUR VEHICLE HAS BEEN MODIFIED TO PLOW SNOW, WHETHER THE SNOW PLOW BLADE IS ATTACHED TO THE VEHICLE OR NOT.**
   - **C. BREAKDOWN CAUSED BY OR INVOLVING MODIFICATIONS UNLESS THOSE MODIFICATIONS WERE PERFORMED BY THE MANUFACTURER AND THE MODIFICATIONS MEET THE MANUFACTURER'S SPECIFICATIONS (E.G. TIRES TWO OR MORE SIZES LARGER OR SMALLER THAN THE MANUFACTURER'S SPECIFICATIONS, LIFT KITS, AFTERMARKET PERFORMANCE PARTS OR SYSTEMS).**
   - **D. BREAKDOWN CAUSED BY OR INVOLVING EQUIPMENT, COMPONENTS OR SYSTEMS NOT INSTALLED BY THE MANUFACTURER.**
2. **NON-STANDARD USE:**
   - **A. BREAKDOWN CAUSED BY TOWING A TRAILER OR ANOTHER VEHICLE UNLESS YOUR VEHICLE IS EQUIPPED FOR THIS AS RECOMMENDED BY THE MANUFACTURER.**
   - **B. ANY BREAKDOWN WHERE THE VEHICLE HAS BEEN USED FOR A PROHIBITED COMMERCIAL PURPOSE, AS DEFINED IN SECTION I. KEY TERMS, AT ANY TIME WHILE OWNED BY YOU. HOWEVER, THE VEHICLE MAY BE USED FOR PERMITTED COMMERCIAL PURPOSES AS DEFINED IN SECTION I. KEY TERMS.**
   - **C. BREAKDOWN CAUSED BY USING YOUR VEHICLE FOR STREET RACING OR OTHER COMPETITION.**
3. **NEGLIGENCE, MISREPRESENTATION OR MISUSE:**
   - **A. BREAKDOWN CAUSED BY ABUSE, MISUSE, ALTERATIONS OR LACK OF CUSTOMARY MAINTENANCE AS DETAILED IN SECTION VII. YOUR RESPONSIBILITIES.**
   - **B. BREAKDOWN CAUSED BY CONTAMINATION, OVERHEATING, LACK OF COOLANT, LACK OF LUBRICANTS, IMPROPER SPECIFICATION (TYPE) OF FLUIDS, LACK OF OIL VISCOSITY, SLUDGE OR RESTRICTED OIL FLOW. EXAMPLES INCLUDE BUT ARE NOT LIMITED TO: ENGINE AND TRANSMISSION.**
   - **C. BREAKDOWN WHEN CONTAMINATED FLUIDS CAUSED OR CONTRIBUTED TO THE BREAKDOWN.**
   - **D. LOSS OR DAMAGE CAUSED BY YOU OR THE OPERATOR'S FAILURE TO USE ALL REASONABLE PRECAUTIONS TO PROTECT THE VEHICLE FROM ANY FURTHER LOSS OR DAMAGE AFTER A BREAKDOWN OR FAILURE HAS OCCURRED OR BEEN INDICATED.**
   - **E. IF YOUR VEHICLE'S ODOMETER HAS BEEN STOPPED, ALTERED OR MISREPRESENTS YOUR VEHICLE'S ACTUAL MILEAGE INCLUDING BUT NOT LIMITED TO ODOMETER MISREPRESENTATION CAUSED BY THE USE OR MODIFICATION OF THE VEHICLE WITH UNDERSIZE OR OVERSIZE TIRE AND WHEEL ASSEMBLIES.**
   - **F. DAMAGE CAUSED TO YOUR ENGINE RESULTING FROM THE INGESTION OF WATER.**
   - **G. BREAKDOWN OR DAMAGE CAUSED BY NEGLECTING TO FOLLOW PROPER CHARGING PROCEDURES OR USE OF INCOMPATIBLE CHARGING DEVICES FOR YOUR PLUG-IN HYBRID/ELECTRIC VEHICLE.**
4. **COLLISION, PHYSICAL DAMAGE AND COSMETICS:**
   - **A. BREAKDOWN CAUSED BY OR INVOLVING COLLISION, FIRE, THEFT, VANDALISM, RIOT, TERRORIST ACTS, WAR, EXPLOSION, LIGHTNING, EARTHQUAKE, HURRICANE, TROPICAL STORM, VOLCANIC ERUPTION, WINDSTORM, HAIL, WATER, FREEZING OR FLOOD.**
   - **B. TO CORRECT A COSMETIC IMPERFECTION OR BREAKDOWN CAUSED BY RUST OR WEATHER RELATED CORROSION.**
5. **WARRANTIES AND MANUFACTURER RECALLS:**
   - **A. COSTS OR SERVICES COVERED BY ANY WARRANTY REGARDLESS OF WHETHER THEY HONOR SUCH WARRANTY.**
   - **B. COSTS THAT ARE OR WOULD HAVE BEEN COVERED UNDER ANY VEHICLE MANUFACTURER WARRANTY WHETHER OR NOT SUCH WARRANTY IS IN EFFECT IN ANOTHER COUNTRY OR HAS BEEN VOIDED BY THE MANUFACTURER.**

C. BREAKDOWN THAT IS A DIRECT RESULT OF A MECHANICAL OR STRUCTURAL DEFECT WHEN THE MANUFACTURER HAS ANNOUNCED A PUBLIC RECALL FOR THE PURPOSE OF CORRECTING SUCH A DEFECT.

6. VEHICLE TYPE:
   A. IF YOUR VEHICLE HAD BEEN DECLARED A TOTAL LOSS, SALVAGED TITLE OR JUNK VEHICLE.
   B. IF YOUR VEHICLE IS A TRUCK RATED MORE THAN 1 TON.
   C. IF YOUR VEHICLE WAS MANUFACTURED AS A NON-U.S. SPECIFICATION MODEL.
   D. IF YOUR VEHICLE IS POWERED BY COMPRESSED NATURAL GAS, LIQUIFIED NATURAL GAS, PROPANE OR HYDROGEN.
7. CONSEQUENTIAL DAMAGE:
   A. LOSS OF TIME, ECONOMIC LOSS, INCONVENIENCE, LODGING, FOOD, FREIGHT CHARGES, CORE CHARGES, STORAGE CHARGES, OR OTHER CONSEQUENTIAL LOSS OR DAMAGE THAT RESULTED FROM A BREAKDOWN UNLESS AS PROVIDED UNDER EMERGENCY TRAVEL EXPENSE REIMBURSEMENT. CONSEQUENTIAL OR INCIDENTAL DAMAGE OR LOSS SHOULD YOUR VEHICLE BE INVOLVED IN A COLLISION CAUSED BY OR INVOLVING A BREAKDOWN OF A COMPONENT COVERED BY THIS AGREEMENT.
   B. BREAKDOWN OF A COVERED PART RESULTING FROM THE FAILURE OF A NON-COVERED PART. HOWEVER, COVERAGE WILL BE PROVIDED FOR THE FAILURE OF A NON-COVERED PART RESULTING FROM A BREAKDOWN OF A COVERED PART.
   C. BREAKDOWN OR DAMAGE CAUSED BY A POWER SURGE WHILE CHARGING YOUR VEHICLE.
8. NON-COVERED CONDITIONS:
   A. PRE-EXISTING – BREAKDOWN WHICH EXISTED PRIOR TO OR WAS CAUSED BY A CONDITION WHICH EXISTED PRIOR TO THE PURCHASE DATE.
   B. REPAIRS PERFORMED WITHOUT THE ADMINISTRATOR'S PRIOR AUTHORIZATION EXCEPT WHEN THE ADMINISTRATOR'S OFFICE IS CLOSED AND EMERGENCY REPAIRS ARE NECESSARY (SEE SECTION VI. WHAT TO DO IF REPAIRS ARE NEEDED).
   C. REPAIR OF VALVES AND/OR RINGS FOR THE PURPOSE OF RAISING THE ENGINE'S COMPRESSION WHEN A BREAKDOWN HAS NOT OCCURRED.
   D. REPAIRS MADE SOLELY TO MEET OR MAINTAIN ANY GOVERNMENTAL EMISSION STANDARDS.
   E. REPAIRS OF AIR LEAKS, RATTLES, SQUEAKS, WIND NOISE AND WATER LEAKS WHERE WATER IS ENTERING THE VEHICLE EXTERNALLY.
   F. TO REPAIR, REPLACE, ADJUST OR ALIGN ANY PART NOT COVERED BY THIS AGREEMENT EXCEPT AS REQUIRED FOR THE REPAIR OF A COVERED PART.
   G. DIAGNOSIS CHARGES, COST OF DISASSEMBLY OR ASSEMBLY IF YOUR REPAIR IS NOT COVERED OR HAS BEEN DENIED.
9. MISCELLANEOUS EXPENSES:
   A. EXPENSES CHARGED FOR THE DISPOSAL OF ENVIRONMENTALLY UNSAFE MATERIALS, NON-SPECIFIC MATERIALS OR SHOP SUPPLIES.

VI. WHAT TO DO IF REPAIRS ARE NEEDED

Customer Instructions

In the event of a Breakdown, You can locate a preferred Repair Facility by visiting the Administrator's self-service claim portal:

www.mrclaims.net

If You are unable to locate a preferred Repair Facility through the Administrator's self-service claim portal or have questions, contact the Administrator at:

1-800-533-8136

Customer Service Hours

7:00 a.m. – 7:00 p.m. C.T. Monday – Friday

9:00 a.m. – 3:30 p.m. C.T. Saturday

Emergency Repair Instructions: In the event that a Breakdown of a covered part occurs when the Administrator's office is closed and emergency repairs are necessary, You may commence with emergency repairs without securing the Administrator's prior authorization. However, You or the Repair Facility must notify the Administrator of the repairs as soon as the Administrator's office reopens. You must submit written information and documentation concerning the Breakdown and repairs no later than 30 days after the Breakdown. Reimbursement of emergency repairs will be subject to all terms and conditions of this Agreement and nothing herein authorizes repairs not otherwise covered.

Emergency repairs are those required because Your Vehicle was inoperable or unsafe to drive. Parts must be available for inspection when the Administrator's office reopens.

Repair Facility Instructions

To initiate a claim, visit the Administrator's self-service claim portal:

www.mrclaims.net

VII. YOUR RESPONSIBILITIES

1. You must perform maintenance services to Your Vehicle, at the proper intervals, as required by the Owner's Manual for Your Vehicle. If Your failure to follow these procedures causes a Breakdown, You may be denied coverage. If You do not have an Owner's Manual, contact Your Vehicle's manufacturer to obtain one.
2. You must keep receipts which verify the Vehicle Identification Number, work orders and other documentation that show a date, a description of Your Vehicle, mileage and services performed. We may require You to furnish the Administrator with proof that the specified services have been performed. Failure to show proof of servicing may result in the denial of coverage.
3. You are responsible for making sure the oil warning light/gauge and the temperature warning light/gauge are functioning before driving Your Vehicle. You are required to safely pull Your Vehicle off the road and shut down the engine immediately when either of these lights/gauges indicates a problem.
4. If You experience a Breakdown, You agree to:
   a. Use all reasonable means to protect Your Vehicle from further damage.
   b. Notify the Administrator as soon as possible.
   c. Authorize the Repair Facility to perform necessary diagnostic work and provide "teardown authorization" so that the Repair Facility can provide an accurate diagnosis and estimate of repairs. IMPORTANT: WE WILL NOT PAY FOR DIAGNOSIS CHARGES FOR REPAIRS NOT COVERED UNDER THIS Agreement.
   d. Furnish the Administrator with such information as the Administrator may reasonably require and if requested provide proof of Your Vehicle's regular maintenance during the Agreement Term as noted above.
   e. Reserve for the Administrator the right to refer Your Vehicle to a Repair Facility that sells and services Your type of Vehicle, for certain repairs.
   f. Allow the Administrator to examine Your Vehicle if the Administrator asks to do so.

g. OBTAIN AUTHORIZATION FROM THE ADMINISTRATOR PRIOR TO BEGINNING ANY REPAIRS COVERED BY THIS AGREEMENT EXCEPT WHEN THE ADMINISTRATOR'S OFFICE IS CLOSED AND EMERGENCY REPAIRS ARE NECESSARY (SEE EMERGENCY REPAIR INSTRUCTIONS WITHIN SECTION VI. WHAT TO DO IF REPAIRS ARE NEEDED).

5. Your help and cooperation is required if We ask You to help Us enforce Your rights against any manufacturer or Repair Facility who may be responsible to You for the Cost of repairs covered by this Agreement.

VIII. GENERAL PROVISIONS

1. Agreement Term

The Agreement Term is the **Term Months** and **Term Miles** shown on the Information Schedule. This Agreement begins on the **Purchase Date** and at the Current Mileage stated on the Information Schedule. The Agreement ends following the Expiration Date or when the Expiration Mileage is exceeded, both as shown on the Information Schedule, whichever occurs first. The Agreement Term expiration (Expiration Date or Expiration Mileage) is measured in **Term Months** from the **Purchase Date** and in **Term Miles** from the Current Mileage.

2. When And Where You Are Covered

You are covered when this Agreement is issued or transferred to **You**. This Agreement applies only to **Breakdowns** occurring within the continental United States of America, Alaska, Hawaii and Canada.

3. If You Have Other Coverage

If the manufacturer or **Repair Facility** agrees to cover all or some of the **Cost** of a **Breakdown** after a **Warranty** or guarantee has expired, **We** will pay only for any extra **Cost**. If **You** have any other Rental Reimbursement coverage, Emergency Roadside Assistance coverage, Emergency Travel Expense Reimbursement coverage or Road Hazard Tire Protection coverage, **We** will pay only the amount in excess of that coverage, subject to the limits of this Agreement.

4. Limit of Liability

Our limit of liability is the **Cost** to repair or replace any covered **Breakdown**; but in no event shall this **Cost** exceed the average retail value of **Your Vehicle** as determined by the NADA Official Used Car Guide at the time of loss.

5. Subrogation

If **We** pay for a loss, **We** may require **You** to assign to **Us Your** rights of recovery against others. **We** will not pay for a loss if **You** impair these rights to recover. **Your** rights to recover from others may not be waived.

6. Dispute Resolution – Arbitration

This Agreement requires binding arbitration if there is an unresolved dispute between **You** and **Us** concerning this Agreement (including the **Cost** of, lack of or actual repair or replacement arising from a **Breakdown**). Under this Arbitration provision, **You** give up **Your** right to resolve any dispute arising from this Agreement by a judge and/or a jury. **You** also agree not to participate as a class representative or class member in any class action litigation, any class arbitration or any consolidation of individual arbitrations. In arbitration, a group of three arbitrators (each of whom is an independent, neutral third party) will give a decision after hearing **Your** and **Our** positions. The decision of a majority of the arbitrators will determine the outcome of the arbitration and the decision of the arbitrators shall be final and binding and cannot be reviewed or changed by, or appealed to, a court of law. Any dispute on the application of this arbitration provision will be made by the local court of law in the county and state where **You** live. Notwithstanding this arbitration provision, **You** are not prohibited from bringing an action in Small Claims Court to resolve **Your** dispute.

The Consumer Arbitration Rules of the American Arbitration Association (www.adr.org) will apply to any arbitration under this Agreement. To start arbitration, either **You** or **We** must make a written demand to the other party for arbitration. This demand must be made within one year of the earlier of the date the **Breakdown** occurred or the dispute arose or the applicable statute of limitations period, whichever is longer. **You** and **We** will each separately select an arbitrator. The two arbitrators will select a third arbitrator called an "umpire." All costs and expenses of the arbitration will be shared equally by **You** and **Us**. Unless otherwise agreed to by **You** and **Us**, the arbitration will take place in the county and state in which **You** live. The procedural rules for arbitration shall be governed by the Federal Arbitration Act (9 U.S.C.A. § 1 et. seq.) and not by any state law concerning arbitration. The laws of the state of Illinois (without giving effect to its conflict of law principles) govern all substantive matters arising out of or relating to this Agreement and all transactions contemplated by this Agreement, including, without limitation, the validity, interpretation, construction, performance and enforcement of this Agreement.

7. How This Agreement May Be Transferred

Your rights and duties under this Agreement may only be transferred to a subsequent purchaser directly by **You** within 30 days from the date of sale to the subsequent owner. This Agreement may not be transferred to any entity in the business of selling or leasing motor vehicles. In the event of **Your** death, the benefits of this Agreement will be available to **Your** spouse, domestic partner or legal representative. This Agreement can only be transferred if the remaining portion of the **Warranty** including Powertrain **Warranty** has not been reduced or voided.

To transfer this Agreement, **You** must submit the following information to the **Administrator**:

a. Completed Transfer Request form, which can be obtained by contacting the **Administrator**;
b. Copy of **Your** Agreement;
c. Bill of Sale indicating date of sale of the **Vehicle**;
d. $50 transfer fee made payable to the **Administrator**.

8. How This Agreement May Be Canceled – Including Refunds And Charges

Cancellation By You

You may cancel this Agreement at any time. To cancel, contact the **Administrator** by emailing **Us** at CancelMe@assurant.com or by calling our Customer Service department at 1-800-533-8136. A copy of **Your** Agreement and an odometer reading statement must be included with **Your** request for cancellation.

Cancellation By Us

If **We** cancel this Agreement, **We** will mail **You** written notice at least 30 days prior to cancellation. This notice shall state the effective date of and reason for cancellation. **We** may cancel this Agreement for any reason within 90 days of the **Purchase Date**. After 90 days, **We** may cancel this Agreement:

- If there has been a material misrepresentation or fraud by **You**;
- If **You** have failed to maintain **Your Vehicle** as prescribed by the manufacturer;
- If the odometer has been tampered with or disabled and **You** have failed to repair the odometer;
- If **You** do not pay the **Agreement Price**;
- If **Your Vehicle** has a salvage title; or
- If **You** use **Your Vehicle** in any manner not covered by this Agreement.

Cancellation By Lienholder/Lessor

If this Agreement is financed or included in **Your** lease agreement, the **Vehicle** Lienholder/Lessor may cancel this Agreement in the event **You** default in **Your** obligation to such Lienholder/Lessor or in the event **Your Vehicle** is declared a total loss or is repossessed.

How Refunds are Calculated

If this Agreement is canceled within 60 days of the **Purchase Date** and a claim has not been incurred, a 100% refund of the **Agreement Price** will be made. After 60 days or if **You** have incurred a claim within the first 60 days, a pro-rata refund of the unused **Term Months** or unused **Term Miles** will be made. The pro-rata refund will be calculated by multiplying the **Agreement Price** by the lesser percentage of: (a) the unused **Term Months** divided by the total **Term Months** of **Your** Agreement Term; or (b) the unused **Term Miles** divided by the total **Term Miles** of **Your** Agreement Term; less an administrative fee of $50. **You** authorize that all refunds will be paid to the Lienholder/Lessor if any, otherwise the refund will be paid to **You**. For refund calculations, if the Agreement is canceled by **Us**, all references to 60 days are replaced with 90 days.

9. Insurance

This Agreement is not an insurance contract. **Our** obligations under this Agreement are insured under an insurance policy issued by Virginia Surety Company, Inc., 175 West Jackson Blvd., Chicago, Illinois 60604. In the event **We** cease to operate, are bankrupt or otherwise financially impaired or **Your** claim is not paid within 60 days after proof of loss has been filed, **You** may file a direct claim with Virginia Surety Company, Inc. To do so, please call the following toll-free number for instructions: 1-800-209-6206.

10. Entire Agreement

This Agreement represents the entire agreement between **You** and **Us**. No person has the authority to change this Agreement or to waive any of its provisions. No other written or oral statements apply to this Agreement.

IX. STATE AMENDMENTS

This Agreement is amended to comply with the following state requirements:

Alabama

GENERAL PROVISIONS — Section 6 "Dispute Resolution — Arbitration" is amended as follows:
All references to the state of "Illinois" are replaced with "Alabama".

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges
Cancellation By You is amended to include:
If **You** cancel this Agreement, a 10% penalty per month shall be added to a refund that is not paid within 45 days of return of this Agreement to the **Administrator**.

How Refunds are Calculated is amended as follows:
The $50 administrative fee is deleted and replaced with a $25 administrative fee.

Alaska

Agreement LIMITATIONS — is amended as follows:
Item #4A — Any reference to **"TERRORISTS ACTS"** is deleted in its entirety.

Item #7A is deleted in its entirety and replaced by the following:
LOSS OF TIME, ECONOMIC LOSS, INCONVENIENCE, LODGING, FOOD, FREIGHT CHARGES, CORE CHARGES, STORAGE CHARGES, OR OTHER CONSEQUENTIAL LOSS OR DAMAGE THAT RESULTED FROM A BREAKDOWN UNLESS AS PROVIDED UNDER EMERGENCY TRAVEL EXPENSE REIMBURSEMENT.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges
Cancellation By You is amended to include:
If **You** cancel this Agreement, a 10% penalty per month shall be added to a refund that is not paid within 45 days of return of this Agreement to the **Administrator**.

How Refunds are Calculated is amended as follows:
The $50 administrative fee is deleted and replaced with an administrative fee of $50 or 7.5% of the refund amount, whichever is less.

Arizona

NOTICE TO PURCHASER — is amended to include:
In the event a Breakdown occurs when the Administrator's office is closed, You may follow the claim procedures in this Agreement without prior authorization. Reimbursement will be made to You or the Repair Facility in accordance with Agreement provisions.

Agreement LIMITATIONS — is amended as follows:
Items #1B, 1C, 1D, 2A, 2B, 2C, 3A, 3B, 3E and 3F are amended to include: **"WHILE THE VEHICLE IS OWNED BY YOU."**
Items #6A, 6B, 6C and 8A are deleted in their entirety.

GENERAL PROVISIONS — Section 6 Dispute Resolution — Arbitration is deleted in its entirety.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges
Cancellation By Us is deleted in its entirety and replaced by the following:
If **We** cancel this Agreement, **We** will mail **You** written notice at least 30 days prior to cancellation. This notice shall state the effective date of and reason for cancellation. **We** may cancel this Agreement:

- If there has been a material misrepresentation or fraud by **You**;
- If **You** have failed to maintain **Your Vehicle** as prescribed by the manufacturer;
- If, while owned by **You**, the odometer has been tampered with or disabled and **You** have failed to repair the odometer; or
- If **You** do not pay the **Agreement Price.**

How Refunds are Calculated is amended as follows:
The $50 administrative fee is deleted and replaced with an administrative fee of $50 or 10% of the Agreement Price paid by **You**, whichever is less.

California

Any reference to **Provider** within this Agreement is deleted and replaced by **Obligor**.

KEY TERMS — **"Breakdown"** definition is deleted and replaced by the following:
"Breakdown" means the failure of any original or like replacement part due to defects in material or workmanship covered by this Agreement to perform its intended functions(s) in normal service, providing it has received all scheduled maintenance, at the proper intervals, as recommended by the manufacturer in the Owner's Manual.

Breakdown does not include the gradual reduction in operating performance caused by wear and tear where a failure has not occurred.

KEY TERMS — **"Permitted Commercial Purposes"** definition is deleted and replaced by the following:
"Permitted Commercial Purposes" means **Your Vehicle** is used by a single driver for sales/services (e.g. real estate, cleaning services, home health/aide care services and gardening) or for light duty contracting (e.g. electrician, carpenter and plumber).

KEY TERMS — **"Prohibited Commercial Purposes"** definition is deleted and replaced by the following:

"Prohibited Commercial Purposes" means **Your Vehicle** is used for hauling, construction work, principal off-road use, pickup and/or delivery service, daily rentals, carry passengers for hire (taxi, limousine or shuttle services), towing or road service operations, government/military use, law enforcement, fire, ambulance or other emergency services, snowplowing, company pool use or business travel when the **Vehicle** is used by more than one driver.

KEY TERMS — **"Repair Facility"** definition is amended to include:
If an automobile dealership or licensed repair facility does not provide a written parts and labor guarantee of 12 months and 12,000 miles,**We** will pay the cost to tow **Your Vehicle** to an automobile dealership or licensed repair facility that provides a written parts and labor guarantee for covered repairs of 12 months and 12,000 miles or greater.

ADDITIONAL BENEFITS — Emergency Roadside Assistance is amended to include:
Emergency Roadside Assistance is provided by **Us** and administered by Brickell Financial Services-Motor Club, Inc. 7300 Corporate Center Drive, Suite 601, Miami, FL 33126, 1-305-392-4300.

YOUR RESPONSIBILITIES – is amended as follows:
Item #2 is deleted in its entirety and replace by the following:
2. We recommend that You keep receipts which verify the Vehicle Identification Number, work orders and other documentation that show a date, a description of Your Vehicle, mileage and services performed. Failure to show proof of servicing shall not be cause for denial of coverage.

GENERAL PROVISIONS — Section 4 Limit of Liability is deleted in its entirety and replaced by the following:
Our limit of liability is the **Cost** to repair or replace any covered **Breakdown**; but in no event shall this **Cost** exceed the average retail value of **Your Vehicle** as determined by the NADA Official Used Car Guide at the time immediately prior to the loss.

GENERAL PROVISIONS — Section 5 Subrogation is deleted in its entirety.

GENERAL PROVISIONS — Section 6 Dispute Resolution — Arbitration is deleted in its entirety and replaced by the following:
Mandatory arbitration is not allowed under this Agreement. If **You** and **We** mutually agree, this Agreement provides for binding arbitration if there is an unresolved dispute between **You** and **Us** concerning this Agreement (for example the **Cost** of, lack of or actual repair of replacement arising from a Breakdown). Any dispute on the application of this arbitration provision will be made by the local court of law in the county and state where **You** live. Notwithstanding this arbitration provision, **You** are not prohibited from bringing an action in Small Claims Court to resolve **Your** dispute.

Under this Arbitration provision, **You** give up **Your** right to resolve any dispute arising from this Agreement by a judge and/or a jury. In arbitration, a group of three arbitrators (each of whom is an independent, neutral third party) will give a decision after hearing **Your** and **Our** positions. The decision of a majority of the arbitrators will determine the outcome of the arbitration and the decision of the arbitrators shall be final and binding and cannot be reviewed or changed by, or appealed to, a court of law. The arbitrators shall not have the power to commit errors of law or legal reasoning, and the award may be vacated or corrected on appeal to a court of competent jurisdiction of any such error.

If the party on whom the demand is made agrees, to start arbitration, either **You** or **We** must make a written demand to the other party for arbitration. This demand must be made within one year of the earlier of the date the **Breakdown** occurred or the dispute arose or the applicable statute of limitations period, whichever is longer. **You** and **We** will each separately select an arbitrator. The two arbitrators will select a third arbitrator called an "umpire."

Unless otherwise agreed to by **You** and **Us**, the arbitration will take place in the county and state in which **You** live. The arbitration shall be governed by the California Arbitration Act (California Code of Civil Procedures 1280 et. seq.) and the Consumer Legal Remedies Act (California Civil Code (1750 et. seq.). The laws of the state of California govern all matters arising out of or relating to this Agreement and all transactions contemplated by this Agreement, including, without limitation, the validity, interpretation, construction, performance and enforcement of this Agreement. All costs and expenses of the arbitration will be shared equally by **You** and **Us**.

All fees and costs charged to **You** under this provision shall be waived if **You** are an indigent consumer. "Indigent consumer" means a person having a gross monthly income that is less than 300 percent of the federal poverty guidelines. If **You** are determined to be an indigent consumer all provisions of California Code of Civil Procedure §1284.3 apply.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges
Cancellation By Us is deleted in its entirety and replaced by the following:
If **We** cancel this Agreement, **We** will mail **You** written notice at least 60 days prior to cancellation. This notice shall state the effective date of and reason for cancellation. **We** may cancel this Agreement:
- If there has been a material misrepresentation or fraud by **You**; or
- If **You** do not pay the **Agreement Price**.

If **We** cancel this Agreement, the refund, if any, will be paid within 30 days of the date of cancellation.

How Refunds are Calculated is amended as follows:
No administrative fee will be charged within the first 60 days of cancellation from the **Purchase Date**.

The $50 administrative fee is deleted and replaced with an administrative fee of $25 or 10% of the refund amount, whichever is less.

If this Agreement is canceled by **Us**, no administrative fee will be charged.

GENERAL PROVISIONS — Section 9 Insurance is deleted in its entirety and replaced by the following:
Performance to **You** under this Agreement is guaranteed by a California approved insurance company. **You** may file a claim with this insurance company if any promise made in this Agreement has been denied or has not been honored within 60 days after **Your** request. The name and address of the insurance company is: Virginia Surety Company, Inc., 175 West Jackson Blvd., Chicago, Illinois 60604. If **You** are not satisfied with the insurance company's response,**You** may contact the California Department of Insurance at 1-800-927-4357 or access their website www.insurance.ca.gov.

Colorado
GENERAL PROVISIONS — Section 9 Insurance is amended to include: Insurance Policy #3450.

Connecticut
The coverage afforded by this Agreement is still available should the Agreement Term lapse while **Your Vehicle** is in the custody of a **Repair Facility** for a covered repair.

GENERAL PROVISIONS — Section 6 Dispute Resolution — Arbitration is amended as follows:
If **You** and the **Provider** are unable to resolve any disputes arising under this Agreement, the State of Connecticut has established a process to settle disputes arising from Agreements as outlined in R.C.S.A §§ 42-260-1 to 5. If **You** purchase this Agreement in Connecticut, to initiate the process **You** must first submit a written complaint which may be mailed to: State of Connecticut, Insurance Department, P.O. Box 816, Hartford, CT 06142-0816, Attention: Consumer Affairs. The written complaint must contain a description of the dispute, the **Agreement Price**, the **Cost** of repair of the **Vehicle** and a copy of this Agreement.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges
Cancellation By You is amended to include:
You may cancel this Agreement in the event the **Vehicle** is returned, sold, lost, stolen or destroyed.

Cancellation By Us is amended as follows:
The 30 day written notice prior to cancellation is deleted and replaced with 45 days.

Florida

The rate charged for this Agreement is not subject to regulation by the Office of Insurance Regulation.

Agreement LIMITATIONS — is amended as follows: Item #6A is deleted in its entirety.

WHAT TO DO IF REPAIRS ARE NEEDED — "Emergency Repair Instructions" is amended as follows: The 30 day time period for filing a claim after a **Breakdown** is deleted and replaced with 90 days.

GENERAL PROVISIONS — Section 6 Dispute Resolution — Arbitration is deleted in its entirety.

GENERAL PROVISIONS — Section 7 How This Agreement May Be Transferred is amended as follows:
The $50 transfer fee is deleted and replaced with a $40 transfer fee.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges is deleted in its entirety and replaced by the following:

Cancellation By You

You may cancel this Agreement at any time. To cancel, contact the **Administrator** by emailing **Us** at CancelMe@assurant.com or by calling our Customer Service department at 1-800-533-8136. A copy of **Your** Agreement and an odometer reading statement must be included with **Your** request for cancellation. If **You** cancel this Agreement within 60 days of the **Purchase Date**, a 100% refund of the **Agreement Price** will be made less any claims paid on this Agreement. After 60 days, a pro-rata refund of the lesser of unused **Term Months** or unused **Term Miles** will be made. The pro-rata refund will be calculated by multiplying the **Agreement Price** by the lesser percentage of: (a) the unused **Term Months** divided by the total **Term Months** of **Your** Agreement Term; or (b) the unused **Term Miles** divided by the total **Term Miles** of **Your** Agreement Term; less an administrative fee of $50 or 10% of the refund amount, whichever is less. **You** authorize that all refunds will be paid to the Lienholder/Lessor if any, otherwise the refund will be paid to **You**.

Cancellation By Us

We may cancel this Agreement for any reason within 60 days of the **Purchase Date**. After 60 days, **We** may cancel this Agreement:

- If there has been a material misrepresentation or fraud by **You**;
- If **You** have failed to maintain **Your Vehicle** as prescribed by the manufacturer;
- If the odometer has been tampered with or disabled and **You** have failed to repair the odometer; or
- If **You** do not pay the **Agreement Price**.

If **We** cancel this Agreement, **We** will mail **You** written notice at least 30 days prior to cancellation. This notice shall state the effective date of and reason for cancellation. A pro-rata refund of the lesser of unused **Term Months** or unused **Term Miles** will be made. The pro-rata refund will not be less than 100% of the paid unearned pro-rata **Agreement Price** less any claims paid on this Agreement. **You** authorize that all refunds will be paid to the Lienholder/Lessor if any, otherwise the refund will be paid to **You**.

If this Agreement is financed or included in **Your** lease agreement and **Your Vehicle** is a total loss or is repossessed, **You** authorize **Your** Lienholder/Lessor (shown on the Information Schedule) to cancel this Agreement and receive the refund.

GENERAL PROVISIONS — Section 9 Insurance is amended as follows:
The sentence "This Agreement is not an insurance contract." is deleted in its entirety.

Georgia

KEY TERMS — "Prohibited Commercial Purposes" is amended to delete any reference to "delivery service" in its entirety.

Agreement LIMITATIONS — is amended as follows:
Item #8A is deleted in its entirety.
Item #3B — Any reference to "**SLUDGE**" is deleted in its entirety.
Item #1C is amended to include the text: **"MADE SUBSEQUENT TO THE PURCHASE OF THIS Agreement."**
Item #3E is amended to include the text: "**WHILE OWNED BY YOU**".

YOUR RESPONSIBILITIES — is amended as follows:
Item #4 (c) is deleted in its entirety.

GENERAL PROVISIONS — Section 6 Dispute Resolution — Arbitration is deleted in its entirety.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges is deleted in its entirety and replaced by the following:

Cancellation By You

You, or a person authorized by **You**, may cancel this Agreement at any time. To cancel, contact the **Administrator** by emailing **Us** at CancelMe@assurant.com or by calling our Customer Service department at 1-800-533-8136. A copy of **Your** Agreement and an odometer reading statement must be included with **Your** request for cancellation. If **You** cancel this Agreement, **You** will receive 100% of the unearned pro-rata **Agreement Price**, less an administrative fee of $50 or 10% of the unearned pro-rata **Agreement Price**, whichever is less. **You** authorize that all refunds will be paid to the Lienholder/Lessor if any, otherwise the refund will be paid to **You**. If **Your Vehicle** is declared a total loss or is repossessed, no administrative fee applies.

Cancellation By Us

We may cancel this Agreement:

- In the event of fraud by **You**;
- In the event of material misrepresentation by **You**; or
- If **You** do not pay the **Agreement Price**.

If **We** cancel this Agreement, **We** will mail **You** written notice:

- At least 10 days prior to the effective date of cancellation if **You** do not pay the **Agreement Price**; or
- At least 30 days prior to the effective date of cancellation for fraud or material misrepresentation.

If **We** cancel this Agreement, **You** will receive 100% of the unearned pro-rata **Agreement Price**. **You** authorize that all refunds will be paid to the Lienholder/Lessor if any, otherwise the refund will be paid to **You**.

If this Agreement is financed or included in **Your** lease agreement and **Your Vehicle** is a total loss or is repossessed, **You** authorize **Your** Lienholder/Lessor (shown on the Information Schedule) to cancel this Agreement and receive the refund.

Should **We** fail to refund the unearned consideration, **You** have the right to receive the refund directly from Virginia Surety Company, Inc.

Hawaii

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges
Cancellation By You is amended to include:
If **You** cancel this Agreement, a 10% penalty per month shall be added to a refund that is not paid within 45 days of return of this Agreement to the **Administrator**.

Idaho

Coverage afforded under this Agreement is not guaranteed by the Idaho Insurance Guarantee Association.

Illinois
GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges
How Refunds are Calculated is amended as follows:
The $50 administrative fee is deleted and replaced with an administrative fee of $50 or 10% of the refund amount, whichever is less.

Indiana
This Agreement is not insurance and is not subject to Indiana insurance law.

Your proof of payment to the **Selling Dealer** for this Agreement shall be considered proof of payment to the insurance company, which guarantees **Our** obligation to **You**, providing such insurance was in effect at the time **You** purchased this Agreement.

GENERAL PROVISIONS — Section 8 How This Agreement May be Canceled — Including Refunds And Charges
Cancellation By You is amended to include:
If **Your** cancellation refund is not paid within 60 days after this Agreement has been returned to the **Administrator**, **You** may request a refund from Virginia Surety Company, Inc., 175 West Jackson Blvd., Chicago, Illinois 60604.

Iowa
This Agreement is subject to the applicable provisions of the Iowa Consumer Credit Code, Chapter 537.

If **You** have questions regarding **Your** Agreement, **You** may address them to the Iowa Insurance Commissioner at the following address: Iowa Insurance Division, 601 Locust Street, 4th Floor, Des Moines, Iowa 50309-3738

WHAT THIS Agreement COVERS — is amended to include:
Pre-owned parts will not be used to replace covered parts without prior written authorization from **You**. Rebuilt parts will not be used to replace covered parts unless the parts are rebuilt according to national standards recognized by the Insurance Division.

GENERAL PROVISIONS — Section 8 How This Agreement May be Canceled — Including Refunds And Charges
Cancellation By You is amended to include:
Upon **Our** receipt of **Your** request to cancel this Agreement, **We** will provide written notice to **You** within 15 days of cancellation. If **You** cancel this Agreement, a 10% penalty per month shall be added to a refund that is not paid within 30 days of return of this Agreement to the **Administrator**.

How Refunds are Calculated is amended as follows:
The sentence "**You** authorize that all refunds will be paid to the Lienholder/Lessor if any, otherwise to **You**." is revised to read "**You** authorize that all refunds will be paid by the **Selling Dealer** to the Lienholder/Lessor if any, otherwise the refund will be paid to **You**."

GENERAL PROVISIONS — Section 9 Insurance is amended as follows:
A claim against the **Provider** may also include a refund of the unearned **Provider** fee (**Agreement Price**) in the event this Agreement is cancelled.

Louisiana
GENERAL PROVISIONS — Section 6 Dispute Resolution — Arbitration is deleted in its entirety.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges
How Refunds are Calculated is deleted in its entirety and replaced by the following:
If this Agreement is canceled within 60 days of the **Purchase Date**, a 100% refund of the **Agreement Price** will be made. After 60 days, a pro-rata refund of the unused **Term Months** or unused **Term Miles** will be made. The pro-rata refund will be calculated by multiplying the **Agreement Price** by the lesser percentage of: (a) the unused **Term Months** divided by the total **Term Months** of **Your** Agreement Term; or (b) the unused **Term Miles** divided by the total **Term Miles** of **Your** Agreement Term; less an administrative fee of $50. **You** authorize that all refunds will be paid to the Lienholder/Lessor if any, otherwise the refund will be paid to **You**. If **Your Vehicle** is declared a total loss or is repossessed, no administrative fee applies.

Maine
GENERAL PROVISIONS — Section 6 Dispute Resolution — Arbitration is deleted in its entirety.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges
Cancellation By You is amended to include:
If **You** cancel this Agreement, a 10% penalty per month shall be added to a refund that is not paid within 45 days of return of this Agreement to the **Administrator**.

How Refunds are Calculated is amended as follows:
The $50 administrative fee is deleted and replaced with an administrative fee of $50 or 10% of the refund amount, whichever is less.

Maryland
GENERAL PROVISIONS — Section 1 Agreement Term is amended to include:
If the **Provider** fails to perform its duties under this Agreement, the Agreement Term shall be extended for the period until performance has been satisfactorily completed in accordance with the terms of this Agreement.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges
Cancellation By You is amended to include: If **You** cancel this Agreement, a 10% penalty per month shall be added to a refund that is not paid within 45 days of return of this Agreement to the **Administrator**. If **Your** refund is not paid within 45 days of return of this Agreement to the **Administrator**, **You** have the right to receive the refund directly from Virginia Surety Company, Inc.

Massachusetts
NOTICE TO PURCHASER: THE COVERAGE **YOU** ARE BUYING IS **NOT** REQUIRED IN ORDER TO REGISTER OR FINANCE A VEHICLE. THE BENEFITS PROVIDED **MAY** DUPLICATE EXPRESS MANUFACTURER'S OR SELLER'S **WARRANTIES** THAT COME AUTOMATICALLY WITH EVERY SALE. **YOU** CAN BE REQUIRED BY THE SELLER OF THIS COVERAGE TO PURSUE THOSE **WARRANTIES** WHICH ARE AVAILABLE TO **YOU** WITHOUT THIS Agreement.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges
Cancellation By You is amended to include:
If **You** cancel this Agreement, a 10% penalty per month shall be added to a refund that is not paid within 45 days of return of this Agreement to the **Administrator**.

Michigan
GENERAL PROVISIONS — Section 1 Agreement Term is amended to include:
If performance under this Agreement is interrupted because of a strike or work stoppage at the **Selling Dealer** or **Repair Facility**, the Agreement Term shall be extended for the period of the strike or work stoppage.

Minnesota
GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges
Cancellation By You is amended to include:
If **You** cancel this Agreement, a 10% penalty per month shall be added to a refund that is not paid within 45 days of return of this Agreement to the **Administrator**.

Mississippi

GENERAL PROVISIONS — Section 6 Dispute Resolution — Arbitration is deleted in its entirety.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges

Cancellation By You is amended to include:

If **You** cancel this Agreement, a 10% penalty per month shall be added to a refund that is not paid within 45 days of return of this Agreement to the **Administrator**.

Cancellation By Us is deleted in its entirety and replaced by the following:

If **We** cancel this Agreement, **We** will mail **You** written notice at least 30 days prior to cancellation. This notice shall state the effective date of and reason for cancellation. **We** may cancel this Agreement:

- If there has been a material misrepresentation or fraud by **You**;
- If You do not pay the **Agreement Price**; or
- For substantial breach of duties by **You** relating to the use of the covered **Vehicle**.

How Refunds are Calculated is amended as follows:

The $50 administrative fee is deleted and replaced with an administrative fee of $50 or 10% of the **Agreement Price**, whichever is less.

Missouri

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges

Cancellation By You is amended to include:

If **You** cancel this Agreement, a 10% penalty per month shall be added to a refund that is not paid within 45 days of return of this Agreement to the **Administrator**. Cancellation by **You** will become effective as of the date the written notice of **Your** cancellation is received by **Us**. **We** will mail **You** written notice of **Our** receipt and resulting cancellation of **Your** Agreement within 45 days of the date of cancellation.

How Refunds are Calculated is deleted in its entirety and replaced with the following:

If this Agreement is canceled within 60 days of the **Purchase Date**, a 100% refund of the **Agreement Price** will be made, less paid claims, if any. After 60 days, a pro-rata refund of the unused **Term Months** or unused **Term Miles** will be made. The pro-rata refund will be calculated by multiplying the **Agreement Price** by the lesser percentage of: (a) the unused **Term Months** divided by the total **Term Months** of **Your** Agreement Term; or (b) the unused **Term Miles** divided by the total **Term Miles** of **Your** Agreement Term; less an administrative fee of $50. **You** authorize that all refunds will be paid to the Lienholder/Lessor if any, otherwise the refund will be paid to **You**. For refund calculations, if the Agreement is canceled by **Us**, all references to 60 days are replaced with 90 days. If **Your Vehicle** is declared a total loss or is repossessed, no administrative fee applies.

GENERAL PROVISIONS — Section 9 Insurance is amended as follows:

A claim against the **Provider** may also include a refund of the unearned **Provider** fee (**Agreement Price**) in the event this Agreement is cancelled.

Nebraska

GENERAL PROVISIONS — Section 6 Dispute Resolution — Arbitration is deleted in its entirety and replaced by the following:

Notwithstanding anything in this Agreement to the contrary, if **You** and **We** mutually agree at the time of loss, this Agreement provides for arbitration if there is an unresolved dispute between **You** and **Us** concerning this Agreement. **You** agree not to participate as a class representative or class member in any class action litigation, any class arbitration or any consolidation of individual arbitrations. In arbitration, a group of three arbitrators (each of whom is an independent, neutral third party) will give a decision after hearing **Your** and **Our** positions. The decision of a majority of the arbitrators will determine the outcome of the arbitration and the decision of the arbitrators shall not be binding upon **You**. Any dispute on the application of this arbitration provision will be made by the local court of law in the county and state where **You** live. Notwithstanding this arbitration provision, **You** are not prohibited from bringing an action in Small Claims Court to resolve **Your** dispute.

The Consumer Arbitration Rules of the American Arbitration Association (www.adr.org) will apply to any arbitration under this Agreement. To start arbitration, either **You** or **We** must make a written demand to the other party for arbitration. This demand must be made within one year of the earlier of the date the loss occurred or the dispute arose or the applicable statute of limitations period, whichever is longer. **You** and **We** will each separately select an arbitrator. The two arbitrators will select a third arbitrator called an "umpire." All costs and expenses of the arbitration will be shared equally by **You** and **Us**. Unless otherwise agreed to by **You** and **Us**, the arbitration will take place in the county and state in which **You** live. The procedural rules for arbitration shall be governed by the Federal Arbitration Act (9 U.S.C.A. § 1 et. seq.) and not by any state law concerning arbitration. The rules of the American Arbitration Association (www.adr.org) will apply to any arbitration under this Agreement.

Nevada

The following is added to this Agreement: If **You** are not satisfied with the manner in which **We** handle **Your** claim, **You** may contact the Nevada Division of Insurance Commissioner toll free, 1-888-872-3234.

Agreement LIMITATIONS — is amended as follows:

Item #3A is deleted in its entirety and replaced by the following:

FOR A BREAKDOWN CAUSED BY ABUSE, MISUSE OR LACK OF CUSTOMARY MAINTENANCE AS DETAILED IN SECTION VIII. YOUR RESPONSIBILITIES.

GENERAL PROVISIONS — Section 1 Agreement Term is amended to include: This Agreement is not renewable.

GENERAL PROVISIONS — Section 6 "Dispute Resolution — Arbitration" is amended as follows:

All references to "Illinois" are replaced with "Nevada".

GENERAL PROVISIONS — Section 7 How This Agreement May Be Transferred is amended as follows:

The $50 transfer fee is deleted and replaced with a $25 transfer fee.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges

Cancellation By You is amended to include:

If **You** cancel this Agreement, a 10% penalty for each 30 day period or portion thereof shall be added to a refund that is not paid within 45 days of return of this Agreement to the **Administrator**.

Cancellation By Us is deleted in its entirety and replaced by the following:

If **We** cancel this Agreement, **We** will mail **You** written notice at least 30 days prior to cancellation. This notice shall state the effective date of and reason for cancellation. **We** may cancel this Agreement for any reason within 70 days of the **Purchase Date**. After 70 days, **We** may cancel this Agreement:

- If **You** do not pay the **Agreement Price**;
- If **You** are convicted of a crime that results in an increase in the risk covered under this Agreement;
- If there has been a material misrepresentation or fraud by **You**; or
- If **We** discover an act or omission by **You**, or a violation by **You** of any terms or conditions of this Agreement, after the **Purchase Date**, that substantially and materially increases the risk covered under this Agreement.

How Refunds are Calculated is amended as follows:

The $50 administrative fee is deleted and replaced with a $25 cancellation fee. For refund calculations, if the Agreement is canceled by **Us**, all references to 60 days are replaced with 70 days. If this Agreement is canceled by **Us**, no cancellation fee will be charged.

New Hampshire

If **You** have questions, concerns or complaints regarding **Your** Agreement, **You** may address them to the **Provider** at 1-800-621-2130.

GENERAL PROVISIONS — Section 6 Dispute Resolution — Arbitration is amended to include:

All arbitration or dispute resolution in New Hampshire is subject to and will not impede any consumer rights as provided for under New Hampshire RSA 542.

GENERAL PROVISIONS — Section 9 Insurance is amended to include:

If **You** are not satisfied with the insurance company's response, **You** may contact the New Hampshire Department of Insurance, 21 Fruit Street, Concord, New Hampshire 03301, 1-603-271-2261.

New Jersey

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges

Cancellation By You is amended to include:

If **You** cancel this Agreement, a 10% penalty per month shall be added to a refund that is not paid within 45 days of return of this Agreement to the **Administrator**.

New Mexico

GENERAL PROVISIONS — Section 1 Agreement Term is amended to include: This Agreement is not renewable.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges

Cancellation By You is amended to include:

If **You** cancel this Agreement, a 10% penalty for each 30 day period or portion thereof shall be added to a refund that is not paid within 60 days of return of this Agreement to the **Administrator**.

Cancellation By Us is deleted in its entirety and replaced by the following:

If **We** cancel this Agreement, **We** will mail **You** written notice at least 30 days prior to cancellation. This notice shall state the effective date of and reason for cancellation. **We** may cancel this Agreement for any reason within 70 days of the **Purchase Date**. After 70 days, **We** may cancel this Agreement:

- If **You** do not pay the **Agreement Price**;
- If **You** are convicted of a crime that results in an increase in the risk covered under this Agreement;
- If there has been a material misrepresentation or fraud by **You**; or
- If **We** discover an act or omission by **You**, or a violation by **You** of any terms or conditions of this Agreement, after the **Purchase Date**, that substantially and materially increases the risk covered under this Agreement.

How Refunds are Calculated is amended as follows:

For refund calculations, if the Agreement is canceled by **Us**, all references to 60 days are replaced with 70 days.

New York

ADDITIONAL BENEFITS — is amended as follows:

Emergency Travel Expense Reimbursement is deleted in its entirety.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges

Cancellation By You is amended to include:

If **You** cancel this Agreement, a 10% penalty per month shall be added to a refund that is not paid within 30 days of return of this Agreement to the **Administrator**.

North Carolina

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges

Cancellation By Us is deleted in its entirety and replaced by the following:

If **We** cancel this Agreement, **We** will mail **You** written notice at least 30 days prior to cancellation. **We** may only cancel this Agreement at any time for any of the reasons listed below:

- If there has been a material misrepresentation or fraud by **You**; or
- If **You** do not pay the **Agreement Price**.

How Refunds are Calculated is amended as follows:

The $50 administrative fee is deleted and replaced with an administrative fee of $50 or 10% of the refund amount, whichever is less.

Oklahoma

Coverage afforded under this Agreement is not guaranteed by the Oklahoma Insurance Guaranty Association.

This Agreement is not issued by the manufacturer or a wholesale company marketing the product. This Agreement will not be honored by such manufacturer or wholesale company.

Oklahoma service warranty statutes do not apply to commercial use reference in service warranty contracts.

ADDITIONAL BENEFITS — Emergency Roadside Assistance is amended to include:

Emergency Roadside Assistance is provided by Brickell Financial Services-Motor Club, Inc. 7300 Corporate Center Drive, Suite 601, Miami, FL 33126, 1-305-392-4300.

GENERAL PROVISIONS — Section 6 Dispute Resolution — Arbitration is deleted in its entirety.

GENERAL PROVISIONS — Section 7 How This Agreement May Be Transferred is amended as follows: The sentence "This Agreement can only be transferred…" is revised to read: This Agreement can only be transferred if the remaining portion of the **Warranty** including Powertrain **Warranty** has not been reduced or canceled.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refund And Charges

How Refunds are Calculated is amended as follows:

The $50 administrative fee is deleted and replaced with an administrative fee of $50 or 10% of the refund amount, whichever is less. If **We** cancel the Agreement, no administrative fee will be charged.

Oregon

Any reference to **Provider** within this Agreement is deleted and replaced by **Obligor**.

ADDITIONAL BENEFITS — Emergency Roadside Assistance is amended to include:

Emergency Roadside Assistance benefits or services are conducted by Brickell Financial Services-Motor Club, Inc. 7300 Corporate Center Drive, Suite 601, Miami, FL 33126, 1-305-392-4300; however, the **Obligor** is ultimately responsible for providing these benefits. Any failure to provide such benefits by Brickell Financial Services-Motor Club, Inc. or the **Obligor** as specified in this Agreement will be covered by the **Obligor's** reimbursement insurance policy.

GENERAL PROVISIONS — Section 6 Dispute Resolution — Arbitration is deleted in its entirety.

South Carolina

If **You** have questions, concerns or complaints regarding **Your** Agreement, **You** may address them to:
South Carolina Department of Insurance, P.O. Box 100105, Columbia, South Carolina 29201-3105, 1-803-737-6180

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges
Cancellation By You is amended to include:
If **You** cancel this Agreement, a 10% penalty per month shall be added to a refund that is not paid within 45 days of return of this Agreement to the **Administrator**.

Texas

Unresolved complaints or questions concerning the regulation of Agreements may be directed to the Texas Department of Licensing and Regulation at P.O. Box 12157, Austin, TX 78711, 1-800-803-9202.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges
Cancellation By You is amended to include:
If **You** cancel this Agreement, a 10% penalty per month shall be added to a refund that is not paid within 45 days of return of this Agreement to the **Administrator**. If **Your** cancellation refund is not paid within 45 days after this Agreement has been returned to the **Administrator**, **You** may request a refund from Virginia Surety Company, Inc., 175 West Jackson Blvd., Chicago, Illinois 60604. The right to cancel this Agreement is not transferable to a subsequent holder of this Agreement.

How Refunds are Calculated is amended as follows:
If this Agreement is canceled by **Us**, no administrative fee will be charged.

Utah

Coverage afforded under this Agreement is not guaranteed by the Property and Casualty Guaranty Association.

This Agreement is subject to limited regulation by the Utah Insurance Department. To file a complaint, contact the Utah Insurance Department.

ADDITIONAL BENEFITS — Emergency Roadside Assistance is amended to include:
Emergency Roadside Assistance is provided by Brickell Financial Services-Motor Club, Inc. 7300 Corporate Center Drive, Suite 601, Miami, FL 33126, 1-305-392-4300.

WHAT TO DO IF REPAIRS ARE NEEDED — "Emergency Repair Instructions" is amended to include: Utah residents are not limited to filing claims within 30 days for reimbursement consideration. The sentence "Emergency repairs are those required because **Your Vehicle** was inoperable or unsafe to drive." is deleted in its entirety.

GENERAL PROVISIONS — Section 6 Dispute Resolution — Arbitration is deleted in its entirety and replaced by the following:
Any matter in dispute between **You** and **Us** may be subject to arbitration as an alternative to court action pursuant to the rule of The American Arbitration Association or other recognized arbitrator, a copy of which is available on request from **Us**. Any decision reached by arbitration shall be binding upon both **You** and **Us**. The arbitration award may include attorney's fees if allowed by state law and may be entered as a judgment in any court of proper jurisdiction.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges
Cancellation By Us is deleted in its entirety and replaced by the following:
If **We** cancel this Agreement, **We** will mail **You** written notice at least 30 days prior to cancellation. This notice shall state the effective date of and reason for cancellation. **We** may cancel this Agreement for any reason within 60 days of the **Purchase Date**. After 60 days, **We** may cancel this Agreement:

- For nonpayment of the **Agreement Price**;
- For material misrepresentation by **You**;
- For substantial changes in the risk assumed, unless the insurer should reasonably have foreseen the change or contemplated the risk when entering into the contract; or
- For substantial breaches in contractual duties, conditions or warranties.

Cancellation By Lienholder/Lessor is deleted in its entirety and replaced by the following:
If this Agreement is financed or included in **Your** lease agreement and **Your Vehicle** is a total loss or is repossessed, **You** authorize **Your** Lienholder/Lessor (shown on the Information Schedule) to receive the refund.

Wisconsin

THIS CONTRACT IS SUBJECT TO LIMITED REGULATION BY THE OFFICE OF THE COMMISSIONER OF INSURANCE.

ADDITIONAL BENEFITS — Emergency Roadside Assistance is amended to include:
Emergency Roadside Assistance is provided by Brickell Financial Services Motor Club, Inc., 7300 Corporate Center Drive, Suite 601, Miami, FL 33126, 1-305-392-4300.

Agreement LIMITATIONS — is amended as follows: Item #8B is deleted in its entirety.

WHAT TO DO IF REPAIRS ARE NEEDED — "Emergency Repair Instructions" is amended to include: The 30 day time period for filing a claim after a **Breakdown** is deleted and replaced with as soon as reasonably possible.

GENERAL PROVISIONS — Section 5 Subrogation is amended to include: **You** will be made whole before **We** retain any amount **We** may recover.

GENERAL PROVISIONS — Section 6 Dispute Resolution — Arbitration is deleted in its entirety.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges
Cancellation By You is amended to include:
If **You** cancel this Agreement, a 10% penalty per month shall be added to a refund that is not paid within 45 days of return of this Agreement to the **Administrator**.

Cancellation By Us is deleted in its entirety and replaced by the following:
If **We** cancel this Agreement, **We** will mail **You** written notice at least 30 days prior to cancellation. This notice shall state the effective date of and the reason for cancelation. **We** may cancel this Agreement:

- If there has been a material misrepresentation or fraud by **You**;
- If **You** do not pay the **Agreement Price**; or
- For substantial breach of duties by **You** relating to the use of the covered **Vehicle**.

How Refunds are Calculated is amended as follows:
The $50 administrative fee is deleted and replaced with an administrative fee $50 or 10% of the refund amount, whichever is less.
In the event **Your Vehicle** is declared a total loss, **You** may cancel this Agreement and receive a pro-rata refund of the **Agreement Price**, less any claims paid. No administrative fee will be charged.

Wyoming

GENERAL PROVISIONS — Section 6 Dispute Resolution — Arbitration is deleted in its entirety.

GENERAL PROVISIONS — Section 8 How This Agreement May Be Canceled — Including Refunds And Charges

Cancellation By You is amended to include:

If **You** cancel this Agreement, a 10% penalty per month shall be added to a refund that is not paid within 45 days of return of this Agreement to the **Administrator**.

Cancellation By Lienholder/Lessor is deleted in its entirety and replaced by the following:

If this Agreement is financed or included in **Your** lease agreement and **Your Vehicle** is a total loss or is repossessed, **You** authorize **Your** Lienholder/Lessor (shown on the Information Schedule) to receive the refund.

How Refunds are Calculated is amended as follows:

The sentence "**You** authorize that all refunds will be paid to the Lienholder/Lessor if any, otherwise the refund will be paid to **You**." is revised to read "**You** authorize all refunds will be made payable to the Lienholder/Lessor and **You**."

HELLOSIGN

Audit Trail

TITLE	Protection plan on your Shift car
FILE NAME	contract-b9wDFyPZ.pdf
DOCUMENT ID	608e802283f677a6fe4b678d2afa95be575357f5
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